

Raghuraj Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 March 2018 · WRIT - C No. 5535 of 2018 · **Writ disposed; petitioner relegated to CGRF under Clause 7.10; recovery stayed three months.**

HEADNOTE

Where liability for tube-well electricity arrears turned on disputed facts as to whether the connection had been transferred from the recorded consumer (the petitioner's uncle) to the petitioner, the High Court declined to decide the controversy in writ jurisdiction and directed the petitioner to the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, staying recovery for three months or until the Forum decided, whichever was earlier.

FACTUAL SUMMARY

Raghuraj Singh challenged a recovery certificate dated 12 September 2017 for Rs.84,686 and a Tehsildar recovery citation dated 15 September 2017. He pleaded that he neither owned nor used the tube-well and that the electricity connection stood in the name of his uncle, Babu Lal Singh. The distribution licensee accepted the connection was in the uncle's name but asserted that a family settlement had transferred it to the petitioner, which he denied.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF route for disputed consumer identity and tube-well arrears recovery

HOLDING

Disputed questions of fact as to whether a family settlement transferred a tube-well electricity connection from the recorded consumer to the petitioner, and thus whether the petitioner is liable for arrears, cannot be decided in writ proceedings. The petitioner is to file a complaint before the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005; the Forum shall decide after hearing both sides in accordance with law. Recovery pursuant to the impugned citation remains stayed for three months or until the Forum decides, whichever is earlier.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A FAMILY SETTLEMENT TRANSFERRED THE TUBE-WELL CONNECTION FROM BABU LAL SINGH TO THE PETITIONER

Parties joined issue; left to CGRF.

NOT DECIDED — LIABILITY FOR RS.84,686 TUBE-WELL ARREARS AND VALIDITY OF THE RECOVERY CERTIFICATE AND CITATION ON MERITS

Not quashed; recovery only stayed pending the Forum.